

1.

CASE #	CASE NAME	HEARING NAME
CVRI2204989	UNITED EL SEGUNDO, INC. VS MY MONTECITO INC SH	MOTION FOR ORDER ISSUING WRIT OF EXECUTION AUTHORIZING SALE OF PROPERTY OR IN THE ALTERNATIVE ASSIGNMENT OF RENTS

Tentative Ruling:

This motion is unopposed. Motion for an order issuing a writ of execution is granted. The Court notes that a Writ of Execution was issued on 6/1/2026. The order bears the clerk's signature and the Court's seal.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502311	HERNANDEZ VS DENIZ	MOTION FOR LEAVE TO INTERVENE BY BENCHMARK INSURANCE

Tentative Ruling:

This motion is unopposed. Motion to intervene is granted. Moving party is ordered to file and serve its Complaint in intervention within 21 days of this order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU VS MASCOT INTERNATIONAL LOGISTICS INC.	MOTION TO COMPEL BY CONG LIU

Tentative Ruling:

Moving party: Plaintiff Cong Liu, pro per

Responding party: Defendant Mascot International Logistics

Plaintiff Cong Liu alleges she purchased 27 display cabinets ("Cargo") using her own funds for a commercial customer and retained ownership and bore all economic risk associated with the Cargo. The Cargo was shipped from China to the United States with House Bill of Lading No. SZOH24010453. After Cargo arrived in the United States, Defendant Mascot International Logistics, Inc. took custody of it and refused to release it, despite Plaintiff's repeated demands. Plaintiff alleges that Defendant falsely misrepresented that the Cargo was detained due to various carrier lien and warehouse lien to coerce Plaintiff into paying additional charges.

The operative Complaint, filed November 18, 2025, asserts causes of action for (1) Conversion; (2) Trespass to Chattels; (3) Intentional Interference with Possessory Rights; and (4) Fraud and Deceit.

Prior to filing the instant action, Plaintiff filed a small claims case against Defendant regarding the same Cargo on March 6, 2024, Case No. SCCO2400217, which was dismissed on June 7, 2024. On March 18, 2024, Plaintiff filed a limited jurisdiction case, *Liu v. Mascot International Logistics, Inc.*, Case No. CVCO2401737 (“LJ Action”), which was voluntarily dismissed on November 18, 2025, the same date the instant action was filed. On April 28, 2026, the Court stayed all proceedings in the present case pending a ruling on Defendant’s Motion to Vacate Dismissal in the LJ Action. On May 20, 2026, the Court denied Defendant’s motion to vacate dismissal.

Plaintiff served Defendant with Plaintiff’s First Set of Requests for Admission (“RFAs”), Set One, on February 10, 2026. (Plaintiff Decl., ¶4, Exh. 1.) Defendant served its verified responses on March 17, 2026. (*Id.* at ¶6, Exh. 2.)

Plaintiff now moves to compel further verified responses to Plaintiff’s RFA Nos. 1, 3, 4, 5, 6, 7, 8, and 9. Plaintiff contends the remaining responses are evasive and incomplete, and good cause exists for further responses.

In opposition, Defendant points out Plaintiff failed to meet and confer given Plaintiff served the instant motion only hours after Plaintiff sent her meet and confer email. Defendant maintains its responses to Plaintiff’s RFAs are Code-compliant. Defendant requests monetary sanctions against Plaintiff in the amount of \$2,600.

In reply, Plaintiff repeats arguments set forth in moving papers.

Trial is not currently set.

ANALYSIS

I. Oversized Filing

California Rules of Court, rule 3.1113(d) limits the opening and responding motion to 15 pages exclusive of the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities or the proof of service. Rule 3.1113(e) requires a party to apply to the court ex parte at least 24 hours before the memorandum is due for permission to file a longer memorandum and state the reasons why the argument cannot be made within the stated limit. Rule 3.1113(f) requires any memorandum that exceeds 10 pages must include a table of contents and a table of authorities, and any memorandum that exceeds 15 pages must also include an opening summary of argument.

Here, Plaintiff fails to include a table of contents and table of authorities as required under Rule 3.1113(f). Although acting in pro per, a pro per litigant is held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536.) Furthermore, as a self-represented litigant she is entitled to the same but no greater consideration than an attorney or represented litigant (*In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830; see also *Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 520), and she must comply with the rules of court to the same extent as an attorney. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444.) **Plaintiff is ADMONISH to comply with all applicable rules when filing briefs.**

II. Legal Standard

If a party has been served with responses to its RFAs, the party may move for an order compelling further responses to RFAs on the grounds that: (1) an answer to a

particular request is evasive or incomplete or (2) an objection to a particular request is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the discovery requests. (*Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220–21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits. (Code Civ. Proc., § 2030.220, subd. (a).) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (*Id.* at § 2030.220, subd. (b).) “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, the party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (*Id.* at § 2030.220, subd. (c).)

III. Meet and Confer

Before filing a motion to compel a further response, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the motion and must file an appropriate declaration with the motion. (Code Civ. Proc. §§ 2030.300, subd. (b), 2031.310, subd. (b)(2), and 2016.040.) A meet and confer declaration “shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.) The meet and confer requirement “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435.) It requires “a serious effort at negotiation and informal resolution,” including attempts by counsel “to talk the matter over, compare their views, consult, and deliberate.” (*Id.* at 1438-1439.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.)

Here, Plaintiff sent an email to meet and confer regarding Defendant’s deficient responses to Plaintiff’s RFAs on May 1, 2026. (Plaintiff Decl., ¶18, Exh. 5.) This is on the same day Plaintiff filed the instant motion. This is NOT a reasonable and good faith attempt to resolve issues informally and is not Code-compliant pursuant to Code of Civil Procedure section 2016.040, subd. (a), regardless of Plaintiff’s claim to file a timely motion. The motion is noted as timely pursuant to Code of Civil Procedure sections 2033.290, subdivision (c), 1010.6, subdivision (a)(4), 1013, and 12a, subdivision (a).

The Court **CONTINUES** the motion and orders the parties to file a separate joint statement no later than 10 days prior to the continued hearing date. The joint statement should outline the additional meet and confer efforts, identify any remaining discovery request at issue, and state the parties’ respective positions. If the proposed joint separate statement will be more than 100 pages long, the Court should order the parties to provide an outline of the disputes. (Cal. Rules of Court, rule 3.1345(b)(2).)

Hearing on the motion is continued to 9/4/2026 at 8:30 a.m. in Department 6.